



CHAPTER 34.

An Act to amend the law relating to the constitution
of marriage in Scotland. [13th July 1939.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the same,
as follows :—

1.—(1) Any two persons who desire to be married to each other in Scotland, may contract a marriage in the office of an authorised registrar in accordance with the following provisions :—

Marriage
before
registrar.

- (i) on production to an authorised registrar of valid certificates of due publication under the Marriage Notice (Scotland) Act, 1878, of notice of the intended marriage, or of a valid certificate of such publication, applicable to both parties, the registrar shall supply a copy of the First Schedule to this Act, and shall, so far as possible, fill up the same according to the information supplied by the parties to the best of their knowledge and belief;

41 & 42 Vict.
c. 43.

- (ii) the parties shall thereafter, in the presence of the registrar and of two persons of the age of sixteen years or upwards as witnesses, declare that they know of no legal impediment to their marriage, and that they accept each other as husband and wife;

- (iii) the registrar shall then complete the filling up of the copy of the aforesaid Schedule and it shall be signed by the parties, the registrar and the witnesses.

(2) The registrar shall cause the particulars of every marriage contracted under this section in his presence as such particulars are set forth in the copy of the aforesaid Schedule to be entered as soon as possible in the register, and the copy of the Schedule shall be transmitted to the Registrar-General for preservation.

(3) The registrar shall be entitled in respect of a marriage contracted under this section in his presence to a fee of five shillings.

(4) Any marriage contracted in accordance with the foregoing provisions of this section shall, unless there be a legal impediment thereto, be a valid and regular marriage in all respects.

18 & 19 Vict.
c. 29.

(5) Section six of the Registration of Births, Deaths and Marriages (Scotland) Act, 1854 (which confers power to make regulations), shall extend to the making of regulations regarding the discharge of the duties imposed on registrars by this section, including, without prejudice to the foregoing generality, the hours during which registrars shall be required to give attendance for the purposes of this section.

(6) In this section the expression "authorised registrar" means a registrar authorised for the purposes of this section by the Registrar-General, and it shall be the duty of the Registrar-General, in pursuance of the power hereby conferred, to authorise at least one registrar in each large burgh and one registrar in each small burgh or in the parish comprising such burgh, and to authorise in the landward areas of counties such number of registrars as the Registrar-General may, after consultation with the county councils, think necessary in order to afford reasonable facilities in every part of Scotland for marriages in accordance with this section. Where any registrar is authorised in pursuance of this subsection, the assistant to that registrar shall, unless the Registrar-General otherwise directs, be deemed to be an authorised registrar.

(7) The power conferred by the last foregoing subsection may be exercised from time to time as the Registrar-General shall think fit, and shall include power to revoke an authorisation thereunder.

2.—(1) Where on a joint application to the sheriff Marriage
by the parties to any marriage intended to be contracted by licence.
within his jurisdiction it appears to the sheriff—

- (a) that one of the parties has his usual residence in Scotland or has lived in Scotland for fifteen days immediately preceding the presentation of the application;
- (b) that there is no legal impediment to the marriage;
- (c) that proclamation of banns of the marriage or publication of notice thereof under the Marriage Notice (Scotland) Act, 1878, could not be obtained till after the day on which it is intended that the marriage shall take place; and
- (d) that, in respect of the illness of one of the parties or other unforeseen and exceptional circumstance, there is reasonable excuse for the failure of the parties to take the necessary steps to secure such proclamation or publication and to obtain a certificate thereof before the said day;

the sheriff may grant a licence for such marriage, and such licence shall, for all purposes, be of the like force and effect as a certificate of notice of marriage applicable to both parties granted under section nine of the aforesaid Act.

(2) If any marriage for which a licence has been granted under this section does not take place within ten days after the grant thereof, the licence shall be void.

3. Section five of the Marriage Notice (Scotland) Act, 1878, shall apply to a marriage contracted and solemnised in Scotland according to the usages of the Society of Friends, commonly called Quakers, if either of the parties to such marriage is a member of the said Society or an attender associated therewith, in like manner as the said section applies to a marriage so contracted and solemnised between persons who are both members of the said Society.

Amendment
of s. 5 of
41 & 42 Vict.
cap. 43.

Validity of
registered
regular
marriage.

4. The validity of a regular marriage which has been registered under the Registration of Births, Deaths and Marriages (Scotland) Acts, 1854 to 1938, shall not be questioned in any legal proceedings whatsoever, on the ground that the person by whom such marriage was celebrated or solemnised was not competent or qualified to do so.

Abolition of
irregular mar-
riage by
declaration and
by promise *subse-*
quente copula.

5. No irregular marriage by declaration *de presenti* or by promise *subsequente copula* contracted after the commencement of this Act shall be valid.

Registration
of irregular
marriages
established
by declara-
tor.

6.—(1) Where decree of declarator establishing an irregular marriage has been granted in the Court of Session, the Principal Clerk of Session shall forthwith cause the decree and the names, designations and addresses of the parties to be intimated to the Registrar-General and on receipt of such intimation the Registrar-General shall cause the marriage to be registered.

(2) Sections forty-eight and forty-nine of, and Schedule (K.) annexed to, the Registration of Births, Deaths and Marriages (Scotland) Act, 1854, are hereby repealed.

Interpreta-
tion.

7. In this Act unless the context otherwise requires—the expression “Registrar-General” means the Registrar-General of Births, Deaths and Marriages in Scotland;

the expressions “parish”, “registrar” and “register” have the like meanings as in the Registration of Births, Deaths and Marriages (Scotland) Acts, 1854 to 1938;

the expressions “large burgh” and “small burgh” have the like meanings as in the Local Government (Scotland) Act, 1929;

any reference to a certificate of due publication under the Marriage Notice (Scotland) Act, 1878, of notice of an intended marriage shall include a reference to any certificate which, by virtue of any enactment, is of the same force and effect as a certificate under the said Act.

19 & 20
Geo. 5. c. 25.

Repeal.

8. The enactments set forth in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule :

Provided that, without prejudice to the provisions of section thirty-eight of the Interpretation Act, 1889, nothing in this repeal shall affect any irregular marriage contracted before the commencement of this Act. 52 & 53 Vict. c. 63.

9. This Act shall come into operation on the first day of January nineteen hundred and forty, and may be cited as the Marriage (Scotland) Act, 1939. Commence-
ment and
citation.

SCHEDULES.

Section 1

FIRST SCHEDULE.

SCHEDULE OF MARRIAGE.

Pursuant to Marriage (Scotland) Act, 1939, sec. 1.

6

When, Where and How Married.	Names (in full) of Parties with Signatures. Rank or Profession, and whether Bachelor, Spinster, Widower, Widow or Divorced.	Age.	Usual Residence.	Name, Surname and Rank or Profession of Father. Name, and Maiden Surname of Mother.	Signature of Registrar and Signatures and Addresses of Witnesses.	When and Where Registered, and Signature of Registrar.
19 .	(Name in full)				*	19 .
on the						
day of	(Signature)					
						at
					†	
					Witness	
After	(Name in full)				†	
In the office of the Registrar for the parish of and in the presence of the said Registrar in accordance with the Marriage (Scotland) Act, 1939.	(Signature)				Witness	Registrar.

* Signature of Registrar.

† Signature and Addresses of two Witnesses.

CH. 34.

Marriage (Scotland) Act, 1939.

2 & 3 GEO. 6.

SECOND SCHEDULE.

Section 8.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
19 & 20 Vict. c. 96.	The Marriage (Scotland) Act, 1856.	The whole Act.
6 Edw. 7. c. 40.	The Marriage with Foreigners Act, 1906.	In section five, paragraph (4).
6 & 7 Geo. 5. c. 7.	The Marriage (Scotland) Act, 1916.	The whole Act.
19 & 20 Geo. 5. c. 36.	The Age of Marriage Act, 1929.	In subsection (1) of section three, the words "the Marriage (Scotland) Act, 1856," and the words "the Marriage (Scotland) Act, 1916."

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FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament